

Harbrook Logistics — Commercial Contract Playbook (2026 edition)

Owner: Legal, Harbrook Logistics. Approved by the General Counsel on 2026-01-15. Supersedes the 2024 edition.

1. Limitation of liability

Standard position: each party's total liability is capped at 12 months of fees paid under the agreement. Any cap above 12 months needs written sign-off from the General Counsel. Exclusions from the cap: fraud, wilful misconduct, and breach of confidentiality. Never accept an uncapped liability for Harbrook.

2. Payment terms

Standard position: net 45 days from the date of a correct invoice. Net 30 is an acceptable fallback only in exchange for an early-payment discount of at least 2 percent. Never accept terms shorter than net 30.

3. Indemnification

Standard position: indemnities are mutual and limited to third-party intellectual-property infringement claims and gross negligence. Reject one-way indemnities in the supplier's favour.

4. Intellectual property

Standard position: Harbrook owns all deliverables and work product created for it, and all Harbrook data. A software vendor may keep ownership of its pre-existing platform, provided Harbrook data and reports generated from it remain Harbrook's.

5. Term and renewal

Standard position: initial term of up to three years; renewal must be an express written decision, never automatic. Notice of non-renewal: 60 days.

6. Escalation

Deviations that exceed a previously accepted precedent with the same counterparty go to the General Counsel with the precedent attached. Reviewers record every accepted exception against the counterparty.